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JUDGMENT SHEET

LAHORE HIGH COURT

BAHAWALPUR BENCH, BAHAWALPUR

JUDICIAL DEPARTMENT

Criminal Appeal No. 351/2024

Naseem Kousar v. The State and another

JUDGMENT

Date of hearing	27.05.2025
For the Appellant:	Syed Zeeshan Haider, Advocate.
For the State:	Ch. Asghar Ali Gill and Rao Riaz Ahmad Khan, Deputy Prosecutors General.

Tariq Saleem Sheikh, J. – This appeal is directed against the judgment dated 18.07.2024 passed by the Additional Sessions Judge, Bahawalpur, in case FIR No.483/2023 dated 14.05.2023 registered at Police Station Civil Lines, District Bahawalpur.

The facts

2. On 14.05.2023, PW-1 Muhammad Sohail/T-ASI (the Complainant) was present at Pakora Chowk, Bahawalpur, with other police officials, when he received information from a source that Naseem Kousar (the Appellant), a known drug peddler operating with her husband, had been spotted at *Lorry Adda* carrying a large quantity of narcotics and could be apprehended if prompt action was taken. On this tip-off, the Complainant reached the specified place and noticed a woman who attempted to flee upon seeing the police. However, the Complainant apprehended her with the help of Irum Shehzadi 160/LC (PW-3). He checked the polythene bag that the Appellant was carrying and recovered two packets of heroin, each weighing 1100 grams. He separated 55 grams from each packet to prepare two sealed sample parcels for chemical analysis. Then he secured the remaining heroin (P-1 and P-2) in two separate sealed parcels and took all four parcels into possession vide Recovery Memo Exh. PA. Thereafter, he drafted the complaint Exh. PB and sent it to the police station through Shehzad Sarwar 1244/C (PW-2), on which FIR No. 483/2023 Exh. PC was

registered. Upon completion of the investigation, a report under section 173 Cr.P.C. was submitted.

3. On 13.11.2023, the Additional Sessions Judge indicted the Appellant. She pleaded not guilty. After trial, the court convicted her under section 9(1)-6(d) of the Control of Narcotic Substances Act, 1997 (CNSA), and sentenced her to 14 years' rigorous imprisonment with a fine of Rs. 500,000/-, or six months' simple imprisonment in the event of default. She was extended the benefit of section 382-B Cr.P.C. Hence, this appeal.

The submissions

4. The Appellant's counsel, Syed Zeeshan Haider, Advocate, contended that the prosecution could not prove the charge against the Appellant beyond a reasonable doubt. Most importantly, safe custody of the case property and safe transmission of the sample parcels to the office of the Punjab Forensic Science Agency (PFSA) were not proved. Hence, the conviction recorded against the Appellant was not sustainable and liable to be set aside. A positive report from the PFSA/Government Analyst Exh. PE was inconsequential and of no avail to the prosecution.

5. Ch. Asghar Ali Gill, Deputy Prosecutor General (DPG), vehemently opposed this appeal. He contended that the prosecution had proved its case to the hilt. Muhammad Sohail/T-ASI (PW-1), Irum Shehzadi 160/LC (PW-3), and Muhammad Akhtar/ASI (PW-4) testified that 2200 grams of heroin had been recovered from the Appellant in their presence. Their testimony, he argued, was corroborated by the positive PFSA report (Exh. PE). The DPG submitted that there were no material contradictions in the prosecution evidence from which the Appellant could derive any benefit and prayed for the dismissal of the appeal.

The law and jurisprudence

6. In all criminal cases, the prosecution must prove the charge against the accused beyond a reasonable doubt. At the same time, the principle that "the harsher the sentence, the stricter the standard of

proof”¹ must be kept in view. Until 2012, our courts generally held that procedural technicalities could be overlooked in cases involving possession or transportation of narcotics, and a conviction could be recorded if, upon consideration of the entire material, the court was satisfied that the charge had been proved.² However, in ***Ameer Zeb v. The State*** (PLD 2012 SC 380), the Supreme Court of Pakistan ruled that courts must exercise greater care when trying offences under the CNSA due to the severity of the punishments prescribed. In that case, *charas* was recovered in the form of slabs/cakes, with four packed into each packet. The police mixed small quantities from several slabs into a single sample for chemical analysis. The Supreme Court held that such a mixture could not be treated as a representative sample of the entire quantity. Where narcotics consist of multiple pieces or are contained in different packets, a separate sample must be drawn from each for chemical examination. In ***The State through Regional Director ANF v. Imam Bakhsh and others*** (2018 SCMR 2039), it was held that the prosecution must prove that representative samples of the alleged narcotics remained in safe custody and were securely transmitted to the laboratory without any break in the chain of custody. Any lapse or irregularity in this process undermines the reliability of the Government Analyst’s report and deprives it of the evidentiary value necessary to sustain a conviction. The Supreme Court further stated that the report of the Chemical Analyst, prepared under Rule 6 of the Control of Narcotic Substances (Government Analysts) Rules, 2001, must specify every test applied for the determination of the identity of the seized substances, along with the complete protocols adopted for conducting those tests, to ensure scientific validity and evidentiary reliability. In ***Minhaj Khan v. The State*** (2019 SCMR 326), the Supreme Court held that the police official who takes the complaint from the place of recovery to the police station for registration of FIR is a material witness and the prosecution must examine him during the trial. Most recently, in ***Zahid Sarfaraz Gill v. The State*** (2024 SCMR 934), the Supreme Court underscored the

¹ *Ameer Zeb v. The State* (PLD 2012 SC 380), *Ahmed Ali and another v. The State* (2023 SCMR 781), and *Jeehand v. The State* (2025 SCMR 923).

² *Munawar Hussain alias Bobi and others v. The State* (1993 SCMR 785), *Ghulam Qadir v. The State* (PLD 2006 SC 61), and *Ismaeel v. The State* (2010 SCMR 27). Also see: *Jafar Ali v. The State* (1998 SCMR 2669).

critical importance of video recording the recovery and seizure process in narcotics cases and held that it ought to be video recorded to ensure transparency, procedural fairness, and the credibility of the prosecution's case.³

7. The menace of narcotics is spreading in our society like never before. Therefore, the Control of Narcotic Substances (Amendment) Act, 2022, has further stiffened the punishments for the narcotics-related offences. While this may help curb the said menace, it has also increased instances of false implication. In such circumstances, courts must balance the rights of the accused and those of society. Consequently, they increasingly insist that the prosecution must establish that the prescribed procedural requirements are fulfilled in each case, which include compliance with various provisions of the Police Rules 1934 (the "Police Rules").

8. Section 25 of the CNSA expressly excludes the application of section 103 Cr.P.C. because people are generally reluctant to become witnesses in criminal cases, particularly involving narcotics. Therefore, in these cases, witnesses are typically police officials. While the law recognizes them as competent as any other member of society, the prosecution must substantiate the recovery with evidence that the raid was duly conducted, the recovered substance was confirmed as narcotics through a Government Analyst's report, and the seized substance was produced and properly exhibited before the court in accordance with law.

9. Rule 22.45 of the Police Rules specifies 25 books/registers that must be maintained at each police station. It uses the word "shall", which ordinarily indicates that the provision is mandatory. However, there are instances in which courts have construed the provisions containing this word as directory.⁴ In ***Province of Punjab and others v. Javed Iqbal*** (2021 SCMR 328), the Supreme Court held that, in determining whether a provision is mandatory or directory, the court must ascertain the true intention of the legislature. This is to be gathered

³ This view has been recently reiterated in *Muhammad Abid Hussain v. The State and another* (2025 SCMR 721).

⁴ See, for example, *Tallat Ishaq v. National Accountability Bureau and others* (PLD 2019 SC 112).

from the provision's phraseology, its nature and object, the consequences of construing it one way or the other, and the overall scheme of the statute. A provision is mandatory if non-compliance renders the related proceedings illegal or void; it is directory if substantial compliance is sufficient to preserve their validity. A key consideration is whether non-compliance causes inconvenience or injustice. The courts often apply three tests in this regard: (i) the scope and object of the enactment; (ii) considerations of justice and balance of convenience; and (iii) whether the provision relates to the performance of a public duty or the protection of an individual right. Provisions relating to public duties are generally considered directory, while those involving individual rights or privileges are treated as mandatory.

10. The registers listed in Rule 22.45 of the Police Rules, *inter alia*, include the Station Diary/Daily Diary (*Roznamcha*) (Register No. II), the Store Room Registrar (Register No. XIX), and the Bound Book of Road Certificates (Register No. XXI). Register No. II (the Station Diary) is a complete record of all events that take place at the police station. Rules 22.48 and 22.49 of the Police Rules prescribe the procedure for maintaining Register No. II and the matters to be entered therein. Register No. II should record not only the movements and activities of all police officials and officers but also the visits of outsiders, whether officials or non-officials, coming or brought to the police station for any purpose whatsoever. In narcotics cases, Register No. II must reflect when the police proceed for a raid or other proceedings. Thus, Register No. II is an authentic way to verify the genuineness of various prosecution claims and procedural steps of the case.

11. Rule 22.70 elaborates on Register No. XIX (the Store Room Register). It states that this register shall be maintained in Form 22.70, and except for articles already included in Register No. XVI,⁵ every item placed in the store room must be entered therein, with any subsequent removal duly noted in the appropriate column. The register may be destroyed three years after the date of the last entry.

⁵ See Rule 22.67

12. Importantly, Rule 22.49(j) of the Police Rules mandates that the report regarding property in the store room required by Rules 22.15 and 22.18(2) shall also be mentioned in Register No. II.

13. Rule 22.72 provides for Register No. XXI, which is a bound book of road certificates in Form 10.17, contains sufficient certificates in duplicate to last for three months. It is issued to each police station as required. Each certificate, both office copy and duplicate, is given an annual serial number for that police station and, when returned receipted, the issued copy or the receipt in lieu thereof is pasted at the place from which the copy was removed. Each book is destroyed when the last certificate therein is three years old. A road certificate is a formal dispatch document issued for various purposes. It is also used whenever case property is transferred from one official custody to another, such as from a police station to a forensic laboratory, from the Malkhana to the court, from the court back to the police station, or to an expert such as a Chemical Examiner, Government Analyst, or Ballistics Expert.

14. Register Nos. II, XIX and Road Certificates greatly help foster public trust and provide credibility to the raid and recovery proceedings. They also help establish the chain of custody of case property and the transmission of sample parcels to the PFSA/Government Analyst, which is essential for convicting an offender under section 9 of the CNSA.

15. It is necessary to highlight two things: firstly, safe custody of the case property is pivotal in prosecutions based on the recovery of contraband material. The prosecution must establish that the chain of custody, including both the sample parcels and the remaining bulk, remained intact at every stage. This chain begins with the recovery of the narcotics and continues through all stages of transfer and storage. For the representative samples, the prosecution must prove that they were properly drawn from the seized drug and transmitted to the testing laboratory without any break. On the other hand, for the remaining bulk, the prosecution must produce the officials responsible for its handling and storage. If the safe custody and transmission of the samples is proved, but the chain of custody for the remaining bulk is not, the court may disregard the bulk. However, a conviction may still be recorded to

the extent of the representative samples, provided the case is otherwise proved and the legal requirements, including a positive chemical report, are satisfied.

16. Secondly, the prosecution must produce the recovered narcotics before the court during the trial and have them exhibited through a competent witness. This is a component of the accused's right to a fair trial, which is now guaranteed as a fundamental right under Article 10-A of the Constitution of Pakistan. The Lahore High Court Rules and Orders, Volume III, Chapter 24-B, Part B, Rules 14-E, 14-F, and 14-H are relevant in this context. The evidence should not leave any doubt as to who remained in charge of the articles at each stage of the inquiry, particularly in cases where they were sent to the Chemical Examiner/Government Analyst. The person who packed, sealed, and dispatched such articles should invariably be examined.⁶ Every item of case property must be produced in court during the trial, and witnesses must establish its identity and connection with the case.⁷ Articles produced in evidence must be appropriately marked as "admitted" or "not admitted", and those admitted should be assigned exhibit numbers in serial order.⁸

17. In *Ahmed Ali and another v. The State* (2023 SCMR 781), the Supreme Court observed that Rules 22.16, 22.18, 22.23, 22.70, 27.11, 27.12, and 27.13 of the Police Rules, 1934, ensure the integrity of the case property. Thus, the case property must be kept in the Malkhana, with a corresponding entry in Register No. XIX of the relevant police station. The relevant excerpt is reproduced below:

"Thus, the Police Rules mandate that case property be kept in the Malkhana and that the entry of the same be recorded in Register No. XIX of the said police station. It is the duty of the police and prosecution to establish that the case property was kept in safe custody, and if it was required to be sent to any laboratory for analysis, to further establish its safe transmission and that the same was also recorded in the relevant register, including the road certificate, etc. The procedure in the Police Rules ensures that the case property, when is produced before the court, remains in safe custody and is not tampered with until that time. A complete mechanism is provided in Police Rules qua safe custody and safe transmission of case property to concerned laboratory and then to trial court."

(emphasis added)

⁶ Rule 14-E

⁷ Rule 14-F

⁸ Rule 14-H

18. In *Ahmed Ali*, the Supreme Court also emphasized that the case property is always relevant for adjudicating a case. Where narcotics are recovered from an accused, they must be produced before the court, as only then can the laboratory report support the prosecution’s case. Where conviction and sentence depend on the accused’s possession of narcotics (or on aiding, abetting, or associating with such offences), it is incumbent upon the prosecution to produce the recovered substance before the court and establish that it is the same case property allegedly seized from the accused. The defence may then request the court to de-seal and weigh the case property for verification.

19. In *Jeehand v. The State* (2025 SCMR 923), the Supreme Court observed that when the law requires a thing to be done in a particular manner, it must be done in that manner (*communi observantia non est recedendum*). If the prescribed procedure is not followed, it is presumed that the act has not been lawfully performed. The Court held that this principle becomes even more “inflexible” in cases arising under special enactments like the CNSA, which contains stringent provisions against the accused. It reiterated that to establish safe custody and transmission of the case property, it is incumbent upon the prosecution to produce extracts from Register No.XIX and the Road Certificate during the trial, and failure to do so undermines its case.

20. The legal standards articulated in *Ahmed Ali* and *Jeehand* govern the evidentiary requirements in prosecutions under the CNSA. The next question is whether the principles concerning the production of Register No.XIX and the Road Certificate apply to the present case. The Deputy Prosecutor General contended that they cannot be applied because the Supreme Court’s judgments are always applied prospectively. Before addressing this contention, we must examine the jurisprudence on this issue.

Doctrine of Prospective Overruling – Scope and Application

21. There are two views with regard to the doctrine of precedents – one is described as the Blackstonian theory and the other as “prospective overruling”. In his *Commentaries on the Laws of England*, Blackstone posits that the common law rule was that the court’s duty

was “not to pronounce a new rule but to maintain and expound the old one.” According to him, a judge does not make law but only discovers the true law because it has always been the same. It follows that if a subsequent decision changes the earlier one, the latter does not make law but only discovers the correct principle of law. By this logic, when a precedent is overruled, the later decision does not introduce a new law but merely corrects an error, and the law so declared applies retrospectively. In contrast, in the words of George F. Canfield, the doctrine of “prospective overruling” postulates that “a court should recognize a duty to announce a new and better rule for future transactions whenever the court has reached the conviction that an old rule (as described by the precedents) is unsound even though feeling compelled by *stare decisis* to apply the old and condemned rule to the instant case and to transactions which had already taken place.”

22. The U.S. Supreme Court adopted the doctrine of prospective overruling for the first time in ***Great Northern Railway v. Sunburst Oil and Refinery Co.***, 287 U.S. 358 (1932). It was then reaffirmed in ***Chicot County Drainage District v. Baxter State Bank***, 308 U.S. 371 (1940), and ***Griffen v. Illinois***, 351 U.S. 12 (1956).

23. In ***Wolf v. Colorado***, 338 U.S. 25 (1949), the U.S. Supreme Court held 6-3 that the Fourteenth Amendment did not preclude state courts from admitting evidence obtained through unlawful searches. This view was later overruled in ***Mapp v. Ohio*** (367 U.S. 643, 1961), which held that such evidence was inadmissible in both federal and state courts. In ***Linkletter v. Walker***, 381 U.S. 618 (1965), the question arose as to whether the exclusionary rule laid down in *Mapp* should apply to convictions that had already attained finality before that decision. The Supreme Court, by majority, held that it should not. Justice Clark observed that “the existence of the *Wolf* doctrine prior to *Mapp* is an ‘operative fact’ and may have consequences which cannot justly be ignored. The past cannot always be erased by a new judicial declaration.” The Court reasoned that retrospective application would not advance the purpose of deterring unlawful police conduct. Rather, it would disrupt the administration of justice, as evidence might have been destroyed, misplaced, or deteriorated. Moreover, witnesses might be

unavailable or their memories faded. It would also be unfair to order the wholesale release of convicted persons based on a procedural change unrelated to their guilt. This case reaffirmed the doctrine of prospective overruling, adopting a practical stance against retroactivity. Today, the doctrine of prospective overruling is accepted in all branches of law in the United States, including constitutional law, “but the carving of the retrospectivity of the new rule is left to courts to be done, having regard to the requirements of justice.”⁹

24. Although various jurists criticized the Blackstonian theory, the English Courts followed it for a long time. However, in the *Practice Statement (Judicial Precedent)*, while stating that rigid adherence to precedent is not proper and that it may depart from a previous decision when it appears just, the House of Lords observed that it is necessary to bear in mind “the danger of disturbing retrospectively the basis on which contracts, settlements of property and fiscal arrangements have been entered into and also the especial need for certainty as to the criminal law.”¹⁰ This decision marked a significant departure from the Blackstonian theory and accepts the doctrine of prospective overruling, not expressly but by necessary implication.

25. In *I.C. Golak Nath and others v. State of Punjab and another* (AIR 1967 SC 1643), the Supreme Court of India (SCI) described prospective overruling as a modern doctrine suited to a dynamic society. It observed that, in one sense, the court merely declares the law, whether customary, statutory, or personal. Although the doctrine may involve law-making in strict theory, the court actually declares the law but refuses to give it retroactive effect. It is a pragmatic device that reconciles two competing theories: that a court discovers the law and that it also makes law. The court finds the law but limits its operation to the future. This approach enables a smooth transition by correcting errors without unsettling past transactions. The court has the discretion to determine the extent of retroactivity, allowing it to mould relief to meet the ends of justice. The SCI held that, in India, there is no statutory prohibition against the court refusing to give retroactivity to the law it

⁹ Subbarao, CJ.in *I.C. Golak Nath and others v. State of Punjab and another* (AIR 1967 SC 1643), paragraph 68.

¹⁰ *S.J. & M.M. Price Ltd. v. Milner*, 1966 1 W.L.R. 1234

declares. The doctrine of *res judicata* precludes retroactive application in matters finally adjudicated between the parties. Furthermore, Indian courts, through interpretation, often reject retroactive application of statutory provisions, even when expressed in general terms, on the ground that such application would affect vested rights. The SCI ruled that the Indian Constitution does not expressly or by necessary implication speak against the doctrine of prospective overruling. Articles 32, 141, and 142 are couched in such broad and elastic terms as to enable the Supreme Court to formulate legal doctrines to meet the ends of justice. The only limitation thereon is reason, restraint, and injustice. The SCI laid down three key propositions: “(1) The doctrine of prospective overruling can be invoked only in matters arising under our Constitution; (2) it can be applied only by the highest court of the country, i.e., the Supreme Court, as it has the constitutional jurisdiction to declare law binding on all the courts in India; (3) the scope of the retroactive operation of the law declared by the Supreme Court superseding its earlier decisions is left to its discretion to be moulded in accordance with the justice of the cause or matter before it.”¹¹ The Indian courts have thus developed a flexible doctrine that enables a balance between fairness and legal certainty in the application of judicial pronouncements.

Legal position in Pakistan

26. In Pakistan, Article 189 of the Constitution mandates that the decision of the Supreme Court is binding on all other courts in the country to the extent that it decides a question of law or is based upon or enunciates a principle of law. However, neither the Constitution nor any statute provides whether the law declared by the Supreme Court as aforesaid would be retroactive or otherwise. Therefore, we must look at the cases that have been decided over the years. In ***Muhammad Yusuf v. The Chief Settlement and Rehabilitation Commissioner and another*** (PLD 1968 SC 101), the Supreme Court held:

¹¹ Also see: *Rajasthan State Road Transport Corporation & another v. Bal Mukund Bairwa* [(2009) 4 SCC 299].

“[The judgment in the case of *Jalal Din v. The Chief Settlement Commissioner* (PLD 1965 SC 261)] was delivered on the 2nd November 1964, and its consequence was that as from that date all courts subordinate to the Supreme Court and all executive and *quasi* judicial authorities were obliged by virtue of the Constitution to apply the rule as laid down by the Supreme Court in cases coming up before them for decision. It did not have, and it cannot be contended that it had, the effect of altering the law as from the commencement of the Act so as to render void, of its own force all relevant orders of the Settlement authorities or of the High Court made in the light of the earlier interpretation which was that the exercise of the delegated power was subject to the provisions in Chapter VI of the Act.”

27. In ***Sakhi Muhammad and another v. Capital Development Authority, Islamabad*** (PLD 1991 SC 777), the landowner acquiesced in the award given in 1968. Fifteen years later, in 1983, he invoked the constitutional jurisdiction of the High Court, praying for the reopening of his claim on the basis of a decision of the Supreme Court rendered in another case whereby the circular under which the Land Acquisition Collector awarded compensation to the landowners was found disadvantageous and thus without lawful authority. The Supreme Court held that past and closed transactions could not be reopened and added that its decision could not have the effect of altering the law as from the date of its commencement to render void of its own all relevant order of the authorities or the High Court made in the light of the earlier interpretation.

28. In ***Malik Asad Ali and others v. Federation of Pakistan and others*** (PLD 1998 SC 161), a case in which the appointment of Mr. Justice Sajjad Ali Shah as the Chief Justice of Pakistan was challenged, a 10-member Bench of the Supreme Court expounded the following principles:

- (i) Courts, while interpreting a law, do not legislate, create a new law, or amend the existing law. They merely declare the true meaning of the law, which has always existed. To that extent, the law, as declared by the Court, is applicable from the date the law was enacted.
- (ii) Under the Constitution, only the decision of the Supreme Court on a question of law, or to the extent it lays down a principle of law, is binding on all courts and authorities. Therefore, it is possible that a provision of law or the Constitution may have previously been interpreted or understood differently before being authoritatively construed by the Supreme Court. Where such interpretation results in a change in the prevailing understanding, it becomes a matter of public policy – guided by justice, equity, and good conscience – that a person who, acting *bona fide* under the earlier understanding, acquired a right or created a liability, should be

protected from the adverse consequences of the new interpretation.

- (iii) However, no such protection is warranted where a person or authority has acted in defiance of a clear provision of law or the Constitution or where the Court's interpretation does not, in effect, alter the previously accepted meaning. In such cases, the question of prospective application does not arise.
- (iv) The principle that a change in the state of law due to interpretation by the Supreme Court is to be given effect only from the date of the judgment does not apply to cases that were or could have been challenged in accordance with law before or after such interpretation. Moreover, even when the Court adopts an interpretation different from an earlier view, it merely declares the correct legal position as the apex Court. In doing so, it neither legislates nor amends existing law. The Supreme Court may, however, specify the date from which its interpretation is to take effect, having regard to the nature of the provision under consideration, the potential prejudice to individuals or classes of individuals, and the overall requirements of justice in the case.

29. In ***Constitution Petition No.127 of 2012***¹² (PLD 2013 SC 829), the Supreme Court held that, depending on the specific facts and circumstances of a case, it possesses wide discretionary powers that allow it, at the time of delivering a judgment or issuing an order, to prescribe the conditions for its implementation. These may include giving the judgment retrospective effect from a particular date. The Supreme Court further stated that, in exercising such powers, it is guided by the principle *actus curiae neminem gravabit* (no one should suffer due to an act of the court). Accordingly, no person should bear a disadvantage (or gain an unfair advantage or benefit) due to a judicial act, omission, or error. The Court must exercise its powers in a manner that upholds justice and prevents abuse of the process of law. This case demonstrates the Supreme Court's flexible approach in prescribing the temporal scope of its rulings where the demands of justice require.

30. In ***Shahid Pervaiz v. Ejaz Ahmad and others*** (2017 SCMR 206), the Supreme Court held that no right or obligation can arise under an unconstitutional law. Once a legislative instrument is declared unconstitutional, it becomes void *ab initio* and devoid of legal force; it can neither impose obligations nor create liabilities. The Court rejected the argument that rights claimed under such a law are protected

¹² Regarding pensionary benefits of the Judges of Superior Courts from the date of their respective retirement, irrespective of their length of service as such Judges.

by the doctrine of past and closed transactions and are therefore immune from the effect of its judgments. It clarified that vested rights can arise only under a valid and constitutionally sound legal instrument. A law that is void *ab initio* or treated as non-existent by the Court cannot give rise to vested rights, much less warrant protection under the doctrine of past and closed transactions. In ***Pakistan Medical and Dental Council and others v. Muhammad Fahad Malik and others*** (2018 SCMR 1956), it was held that the judgments of the Supreme Court, unless declared otherwise, operate prospectively.¹³ In ***Mir Muhammad Khan and others v. Haider and others*** (PLD 2020 SC 233), the Supreme Court held that the general rule in common law is that judicial pronouncements in most civil cases apply retrospectively to pending matters and prospectively to cases instituted after the judgment. However, clear exceptions to this principle exist, particularly in criminal cases and instances where the Court expressly decides against retrospective application. The Supreme Court further clarified that when it interprets or declares the law, it does not create new law but merely elucidates the meaning of words already used by the legislature or the competent authority. As such, the interpretation is deemed to apply from the date the law or provision was originally enacted, not from the date of the judgment. In principle, therefore, the interpretation has full retrospective effect. However, in practice, the Court may limit its application to pending or future cases to preserve legal certainty and prevent the unsettling of concluded matters, unless the judgment expressly provides otherwise. In ***Hadayat Ullah and others v. Federation of Pakistan and others*** (2022 SCMR 1691), the Supreme Court held that its judgments generally operate prospectively, but may have a retrospective effect if expressly declared. Accordingly, there is no binding rule that all decisions of the Court take effect only from the date of their pronouncement.

31. The Deputy Prosecutor General referred us to some cases which seem to take the view that the Supreme Court's judgments are

¹³ Also see: *Rao Abdul Rehman (deceased) through legal heirs v. Muhammad Afzal (Deceased) through legal heirs and others* (2023 SCMR 815), *Zarai Taraqati Bank Limited and others v. Sarfraz Khan Jadoon and others* [2023 PLC (C.S.) 724].

always prospective.¹⁴ However, the decision in *Malik Asad Ali*’s case, which 10 Hon’ble Judges rendered, prevails over contrary rulings delivered by Benches of lesser strength.¹⁵

32. We may now refer to some cases which affirm the principle that the Supreme Court’s interpretation and declaration of law applies to all pending cases, other than the one in which the ruling is delivered. The following excerpt from ***Haq Nawaz v. Muhammad Kabir*** (2009 SCMR 630) is the most relevant:

“As to the next contention of the learned counsel for the petitioner regarding applicability of the above referred case i.e. *Mian Pir Muhammad* (supra),¹⁶ on the pending cases filed before the pronouncement of the said judgment, it may be mentioned here that proposition in hand stands answered by this Court in the case of *Mst. Bashiran Begum v. Nazar Hussain and another* (PLD 2008 SC 559) wherein it was held that the requirement of mentioning the date, place, and time in the plaint is also essential even in the pending cases.”

33. Similarly, in ***Taisei Corporation and another v. A.M. Construction Company (Private) Limited and another*** (2024 SCMR 640), the Supreme Court held, as a general principle, the law it declares “applies both prospectively to future cases and as well as retrospectively to pending cases, including the one in which it is declared.” An exception to this principle arises only when retrospective application results in grave injustice or serious inconvenience. In such circumstances, the Court may direct that its judgment shall take effect prospectively from a date it deems just and appropriate, based on the specific facts and circumstances of the case. However, this exception cannot be invoked where doing so would negate the legislature’s intent.

34. We are reminded of two decisions under the CNSA relevant to the discussion. In ***Ameer Zeb v. The State*** (PLD 2012 SC 380), the

¹⁴ *Muhammad Younis and others v. Essa Jan and others* (2009 SCMR 1169), *Mst. Attiya Bibi Khan and others v. Federation of Pakistan and others* (2001 SCMR 1161).

¹⁵ It is important to point out that 10 Hon’ble Judges decided *Malik Asad Ali*’s case, but it is actually the decision of the Full Court. In paragraph 32 of the judgment (at page 224), Saiduzzaman Siddiqui J. stated that a Full Court hearing does not always require the presence of all the Judges of the Court on the Bench. If some Judges are unavailable or decline to sit on the Bench for any reason, the remaining Judges may constitute the quorum of the Full Court. He added that the Hon’ble Chief Justice could not sit on the Bench in the present cases because he was a respondent in the petitions. Mr. Justice Ajmal Mian (as he was then) declined to sit on the Bench due to a personal interest in the cases. Mr. Justice Mukhtar Ahmad Junejo, one of the remaining five Judges, declined to sit on the Full Court Bench and proceeded on leave. The other four Judges also chose not to participate in the Full Court session. In these circumstances, the remaining ten Judges constituted the Full Court’s quorum.

¹⁶ *Mian Pir Muhammad and another v. Faqir Muhammad through L.Rs. and others* (PLD 2007 SC 302).

Supreme Court ruled that where any narcotic substance allegedly recovered is contained in different packets, wrappers, or containers, or is in the form of separate cakes, slabs, or other individual physical units, a separate sample must be drawn from each such packet, wrapper, container, or unit for chemical analysis. If that is not done, only that quantity of narcotic substance is to be considered against the accused person from which a sample was taken and tested with a positive result. In ***The State through Regional Director ANF v. Imam Bakhsh and others*** (2018 SCMR 2039), the Supreme Court declared that Rule 6 of the Control of Narcotic Substances (Government Analysts) Rules, 2001 is mandatory to the extent that the full protocols ought to be mentioned in the report of the Government Analyst. Non-compliance with Rule 6, in this context, will render the report of the Government Analyst inconclusive and unreliable. In both these instances, the Supreme Court's dictum was applied to all pending cases.

Are the principles laid down in Ahmed Ali and Jeehand applicable to the present case?

35. The argument that the principles laid down in *Ahmed Ali* and *Jeehand* apply only prospectively is misconceived. Those judgments did not introduce new legal obligations but merely reaffirmed procedural requirements that were already part of the legal framework, including Rules 22.48, 22.70, and 22.72 of the Police Rules and Volume III, Chapter 24-B, Part B, Rules 14-E, 14-F, and 14-H of the Lahore High Court Rules and Orders. Even before *Ahmed Ali*, courts had, in several cases, treated non-production of the relevant registers, such as the Roznamcha,¹⁷ or Register No. XIX,¹⁸ as a ground for acquittal. What *Ahmed Ali* and *Jeehand* did was to restate these requirements with authoritative clarity and confirm their mandatory character. Even otherwise, because the Supreme Court did not restrict the application of those rulings to future cases, they apply fully to pending matters, including the present case.

36. In the present case, the FIR was registered on 14.05.2023, and the Appellant was indicted on 13.11.2023. On the other hand, the

¹⁷ See, for example, *Aijaz Ali v. The State* (2001 YLR 1493), *Abdul Ghaffoor v. The State* (2013 PCr.LJ 1185), *The State v. Javed Iqbal* (2021 YLR 662).

¹⁸ *Shahzeb v. The State* (2023 PCr.LJ 1720).

judgment in *Ahmed Ali* was rendered on 13.12.2022, though it was published in law reports two or three months later. In these circumstances, the prosecution was obligated to ensure compliance with the standards affirmed by the Supreme Court.

Evaluation of prosecution evidence

37. The prosecution examined seven witnesses to prove the charge against the Appellant. Muhammad Sohail/T-ASI (PW-1), the Complainant and a recovery witness, deposed that on 14.05.2023 he apprehended the Appellant and recovered 2200 grams of heroin. He separated 55 grams from each packet of heroin and prepared two sealed sample parcels for chemical analysis. Then he sealed the remaining heroin (P-1 and P-2) in two separate sealed parcels at the spot in the presence of Irum Shehzadi 160/LC (PW-3) and Muhammad Akhtar/ASI (PW-4) and secured all four parcels vide Recovery Memo Exh. PA. When the Investigating Officer, Mithu Kalash/SI (PW-7), reached the spot, he handed over the case property and custody of the Appellant to him. PWs Irum Shehzadi and Muhammad Akhtar corroborated him.

38. PW Mithu Kalash/SI (PW-7) testified that on his return to the police station, he entrusted the case property to Moharrar Muhammad Iqbal 1552/HC (PW-5) for safekeeping in the police station's Malkhana. PW Muhammad Iqbal confirmed that he kept it there and, on 16.05.2023, handed over sealed sample parcels to Muhammad Sohail/T-ASI (PW-1) for transmission to the PFSA, who delivered them on the same day. He further testified that on 19.05.2023, he handed over the sealed parcels of the remaining case property to PW Muhammad Sohail/T-ASI for their deposit in the Saddar Malkhana, who delivered them there on the same day. Muhammad Shoaib Khan/SI (PW-6) corroborated this fact. The prosecution also produced the recovered narcotics in court during the trial and exhibited them in evidence through a competent witness. However, these oral assertions and the production of case property were insufficient to establish safe custody or secure transmission unless supported by documentary evidence. The prosecution failed to produce Register Nos. II or XIX, or the Road Certificates, or tender certified copies thereof, to establish that the case property remained in safe custody and was securely transmitted

to the forensic laboratory, as required under the Police Rules and the jurisprudence discussed. This omission undermines the prosecution's case. It cannot be treated as a mere procedural lapse or curable irregularity.

Conclusion and disposition

39. Section 29 of the CNSA creates a statutory presumption of guilt and shifts the burden of proof onto the accused once the prosecution has established certain foundational facts. This principle of reverse burden is not unique to the CNSA. Similar provisions exist under the Offences in Respect of Banks (Special Courts) Ordinance, 1984,¹⁹ and previously under the National Accountability Ordinance, 1999.²⁰ However, this reverse burden does not absolve the prosecution of its initial duty. The Supreme Court has consistently held that such presumptions are not automatic but are triggered only after the prosecution establishes a *prima facie* case.²¹ Therefore, the ordinary burden of proof remains with the prosecution until that threshold is met.

40. In the present case, the prosecution failed to establish the foundational facts necessary to invoke the presumption under section 29 of the CNSA. Although it produced oral testimony regarding the recovery and movement of the case property, it did not tender any documentary evidence to prove its safe custody or secure transmission. Specifically, it failed to produce extracts from the Register Nos. II and XIX of the police station, or the Road Certificate, as required under the law. As a result, the safe custody of the seized narcotics as well as the secure transmission of the representative samples to the PFSA remained unproven. The mere production of a positive report from the PFSA (Exh. PE) did not cure this omission, as it could not establish the integrity of the chain of custody. As adumbrated, such a report carries evidentiary value only when it is shown that the seized narcotics were preserved and transmitted to the laboratory in accordance with the prescribed procedure. Therefore, the presumption of guilt never arose in

¹⁹ Section 9, Offences in Respect of Banks (Special Courts) Ordinance, 1984.

²⁰ Section 14, National Accountability Ordinance, 1997 (since omitted vide Section 10 of Act XI of 2022).

²¹ *Pir Mazharul Haq and others v. The State through Chief Ehtesab Commissioner* (PLD 2005 SC 63).

this case, and the burden remained on the prosecution to prove its case beyond a reasonable doubt.

41. Given the above, Criminal Appeal No. 351/2024 is **allowed**. The conviction and sentence recorded against the Appellant are set aside, and she is acquitted of the charge. She shall be released forthwith if not required to be detained in any other case.

(Raja Ghazanfar Ali Khan)
Judge

(Tariq Saleem Sheikh)
Judge

Naeem

Approved for reporting

(Raja Ghazanfar Ali Khan)
Judge

(Tariq Saleem Sheikh)
Judge